TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
DECEMBER 16, 2019
MINUTES

Present: Joseph Belton, Chair, Barry Wolff, Megan Stevens, Stephen Wood, Stephen Duke, Glyn Cowden.
Absent: David Rubin.
Staff: Michael Robertson, Lynnette Lynes

Mr. Belton called the meeting to order at 6:00 pm.

A. Approval of Agenda
B. Approval of Minutes

▶ *Mr. Wolff moved for approval of the agenda and minutes. Mr. Duke seconded the motion. All in favor.*

Mr. Belton reviewed the procedure with the public.

C. Public Comment

There being no public comment, Mr. Belton continued with the agenda.

D. General Correspondence

1. **Request for one-year extension of Case V-41-05 in accordance with §156.049**

▶ *Mr. Wolff moved for approval of the extension as presented. Mr. Duke seconded the motion. All in favor.*

E. Administration of Oath

▶ Mr. Belton administered the oath to those speaking.

F. Business

1. **Case A-10-19, Coleman Boulevard at Live Oak Drive, TMS# 517-16-00-066, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as**

a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.

2. **Case V-39-19, Coleman Boulevard at Live Oak Drive, TMS# 517-16-00-066, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
3. **Case A-11-19, Hwy 17N at Ravenel Bridge, TMS# 517-00-00-232, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
4. **Case V-40-19, Hwy 17N at Ravenel Bridge, TMS# 517-00-00-232, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
5. **Case A-12-19, 3110 Hwy 17N, TMS# 598-00-00-098, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
6. **Case V-41-19, 3110 Hwy 17N, TMS# 598-00-00-098, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
7. **Case A-13-19, 462 Wando Park Blvd., TMS# 537-00-00-044, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section**

156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.

8. **Case V-42-19, 462 Wando Park Blvd., TMS# 537-00-00-044, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
9. **Case A-14-19, 1314 Stuart Engals Blvd., TMS# 560-02-00-024, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
10. **Case V-43-19, 1314 Stuart Engals Blvd., TMS# 560-02-00-024, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
11. **Case A-15-19, 1111 McKnight Rd., TMS# 578-00-00-476, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
12. **Case V-44-19, 1111 McKnight Rd., TMS# 578-00-00-476, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**

Mr. Wolff referred to Article 3 of bylaws and suggested that there is not good cause to approve a continuance for these requests.

Mr. Wolff moved for denial of the request for a continuance. Mr. Cowden seconded the motion.

Mr. Jeff Tibbels, attorney for the applicant, stated that the continuance was requested at the urging of the Town's attorney.

Mr. Robertson stated that there are some questions raised with the application that need further review by legal staff and this was the reason for requesting the continuance for 90 days.

Mr. Wolff withdrew his motion. Mr. Cowden withdrew his second.

Mr. Wolff moved to defer the items to the next meeting. Mr. Cowden seconded the motion. All in favor.

13. Case V-45-19, 971 Fowler Ct., TMS# 517-04-00-268, Request for relief from the strict application of §156.111 A.1 & 2 to allow a 4 foot setback from property line and an approximately 13 and half foot setback from primary structure on the adjacent lot. Ordinance requires a 6-foot setback from property line and a 15-foot setback from primary structure on adjacent lot.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Michael Strople, owner, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Cowden moved for approval based on the findings that there is a need for proper storage that would not be a detriment to the neighborhood and allow for care of the property. Mr. Duke seconded the motion. All in favor.

14. Case A-16-19, 3584 Crosstree Lane, TMS# 596-15-00-105, Appeal of the Administrative Decision requiring 110 inches of tree mitigation or fee in lieu of mitigation based on Section 156.229 Irreparable Damage in

Protection Zones and Section 156.226. (P) Prohibited Signs. Applicant acknowledges culpability but contends damage is due to Hurricane Dorian.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Bryan Booth, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comments.

- *Mr. Wood moved for affirmation of the Zoning Administrator's decision with the mitigation amount reduced to $12,000. Mr. Wolff seconded the motion. All in favor.*

15. Case V-46-19, 718 & 720 Royall Ave., TMS# 532-09-00-119 & 261, Request for relief from the strict application of §156.303 (C) area, dimension, and setback requirements to allow a lot line adjustment. The ordinance requires a 25-foot rear yard, minimum 8,000 square feet per lot, and 60 feet of frontage on a public street.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Brian Rafferty and Mr. Timothy Eisenhower, applicants, reviewed the request with the Board.

- *Mr. Wolff moved for approval based on the findings that there are extraordinary conditions. Mr. Cowden seconded the motion. All in favor.*

16. Case V-47-19, 204 Live Oak Drive, TMS# 517-15-00-029 & 030, Request for relief from the strict application of 156.313 (D)(5) to allow a 23.5 feet height for accessory structure. Ordinance limits accessory structure height to 20 feet

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Allison Dailey, owner, reviewed the request with the Board.

- *Mr. Wood moved for approval based on the findings that the applicant was granted all requisite permits and it would be unreasonable to remove the*

structure as the applicant relied on those permits issued. Mr. Duke seconded the motion. All in favor.

G. Approval of Final Orders

The Board signed final orders.

Mr. Wolff thanked Mr. Belton for his service on the Board and in serving as the chair.

There being no further business, the meeting adjourned at 6:51 pm.

Submitted by,
L. Lynes
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